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|    |                                                                            | <p>action by a covered employer to avoid responsibilities under CFRA.”</p> <p>Accordingly, Defendant has not demonstrated Plaintiff’s proposed amendment would be futile.</p> <p>While Defendant also contends Defendant provided her with leave that exceeded the time CFRA would have required, that is a factual determination not appropriate for purposes of this motion.</p> <p>Defendant further contends Plaintiff has not complied with California Rules of Court, rule 3.1324, subdivision (b). Plaintiff’s counsel’s declaration submitted in support of the motion states on or about 1/12/26, the parties participated in mediation and “[t]hrough the course of preparing for mediation, Plaintiff learned additional facts supporting claims for interference and retaliation in violation of the CFRA.” (Katz Decl., ¶ 5.) Counsel’s statement that facts were discovered while “preparing for mediation” is ambiguous and does not adequately identify when such facts were discovered. Similarly, Plaintiff’s declaration does not address why the request for amendment was not made earlier.</p>                                                                                                                                                                                                                                                                                                                                                                                                          |
| 5. | <b>STS FOUNDATION, A NOT-FOR-PROFIT CORPORATION VS. READ 2025-01537238</b> | <p><b>1. MOTION TO QUASH SERVICE OF SUMMONS</b></p> <p>Defendant John Crist’s Motion to Quash Service of Summons for Lack of Personal Jurisdiction is GRANTED. Crist is dismissed from the action for lack of personal jurisdiction.</p> <p>“A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: [¶] (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10(a)(1).)</p> <p>“[W]hen jurisdiction is challenged by a nonresident defendant, the burden of proof is upon the plaintiff to demonstrate that ‘minimum contacts’ exist between defendant and the forum state to justify imposition of personal jurisdiction.” (<i>Mihlon v. Sup.Ct.</i> (1985) 169 Cal.App.3d 703, 710.) The burden of proof is a preponderance of the evidence. (<i>Buchanan v. Soto</i> (2015) 241 Cal.App.4th 1353, 1362.) The evidence that jurisdiction is proper must be proved by admissible evidence. (<i>Rivelli v. Hemm</i> (2021) 67 Cal.App.5th 380, 402.)</p> <p>Plaintiff has not opposed this Motion and, thus, has not submitted any admissible evidence of jurisdictional facts sufficient to establish personal jurisdiction over Crist. Thus, Plaintiff has failed to satisfy its burden of proof and jurisdiction cannot be established. Therefore, Crist’s Motion is granted.</p> |

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|    |                                                                     | <p><b>2. MOTION TO QUASH SERVICE OF SUMMONS</b></p> <p>Defendant International Cultural Exchange Services, Inc.’s (Cultural Exchange) Motion to Quash Service of Summons for Lack of Personal Jurisdiction is GRANTED. Cultural Exchange is dismissed from the action for lack of personal jurisdiction.</p> <p>Plaintiff has not opposed this Motion and, thus, has not submitted any admissible evidence of jurisdictional facts sufficient to establish personal jurisdiction over Cultural Exchange. Thus, Plaintiff has failed to satisfy its burden of proof and jurisdiction cannot be established. Therefore, Cultural Exchange’s Motion is granted.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 6. | <p><b>MONTE MAC NO. 1 VS. POTTER</b><br/> <b>2024-014440030</b></p> | <p><b>MOTION FOR LEAVE TO FILE AMENDED COMPLAINT</b></p> <p>Plaintiff Monte Mac No. 1, LP’s Motion for Leave to file a Second Amended Complaint is GRANTED.</p> <p>Plaintiff Monte Mac No. 1, LP (“MM1”) seeks leave to file a Second Amended Complaint (“SAC”) to add two causes of action for breach of contract/failure to negotiate in good faith [letter agreement] and promissory estoppel, provide further context regarding the nature of MM1’s claims, and add allegations regarding alleged misconduct by Defendants that post-dates MM1’s FAC.</p> <p>Defendants Jeffery W. Potter, as Trustee of the Jeffery W. Potter Trust Created Under the Bypass Trust of the Robert and Elizabeth Potter Living Trust Dated September 11, 2001, and as Trustee of the Jeffery W. Potter Trust Created Under the Surviving Trustor’s Trust of the Robert and Elizabeth Potter Living Trust Dated September 11, 2001 (collectively, “Potter”) opposes the motion arguing unexplained delay, futility and prejudice.</p> <p>The court may, in the furtherance of justice, and on such terms as may be proper, allow amendment of a complaint at any time before or after commencement of trial. (Code Civ. Proc. §§ 473(a)(1), 576.) There is a general policy of great liberality in allowing amendment of pleadings at any stage of the litigation. (<i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 488.) Denial is rarely justified. (<i>Morgan v. Sup.Ct.</i> (1959) 172 Cal.App.2d 527, 530.)</p> <p>Here, MM1’s Motion complies with California Rules of Court, Rule 3.1324. The motion is supported by a declaration from its counsel who declares that amendment is necessary so that the operative pleading more accurately reflects the parties’ agreements, as well as the conduct forming MM1’s grounds for relief. (Loh ¶ 7.) MM1’s counsel further declares that the issues raised in Potter’s pending Motion for Judgment on the Pleadings (“MJOP”) further suggest that leave to amend is warranted to the extent that Potter contends</p> |

that there is any further context required to demonstrate that MM1's claims are sufficiently well-pled. (Loh Decl., ¶ 10.)

MM1's counsel explains they did not seek leave to amend sooner because they substituted into the case on 4/16/26. (Loh Decl., ¶ 5.) Counsel declares they needed time to review the extensive file, investigate the relevant communications and subsequent events, analyze the distinct contractual obligations implicated by the facts, prepare the proposed SAC and accompanying comparison materials, and address Potter's new action. (Loh Decl., ¶ 10.) More specifically, to assess the nature of the dispute between the parties, MM1's new counsel reviewed the pleadings, agreements, court filings and hundreds of emails and letters between the parties and their counsel. (Loh Decl., ¶ 6.) During that review, which continued through May 2026, they identified conduct occurring after the First Amended Complaint ("FAC") was filed that bears directly on MM1's claims in this action. (Loh Decl., ¶ 6.) Counsel also identified certain benefits to amending the operative complaint to better address MM1's causes of action. (Loh Decl., ¶ 6.)

While preparing the SAC, MM1's new counsel learned that Potter sued MM1 and its general partner, among others, in a related action on 4/15/26 and filed an ex parte application on 5/28/26 for a temporary restraining order and the appointment of a receiver. (Loh Decl., ¶ 8, Ex. C.) As such, their time and attention were diverted from preparing and filing the instant Motion to attending to those items. (Loh Decl., ¶ 8.)

On 6/4/26, MM1 emailed the proposed SAC to Potter along with a Stipulation to file the SAC. (Loh Decl., ¶ 9, Ex. D.) Potter did not respond. (Loh Decl., ¶ 9.) MM1 filed the instant motion on 6/16/26, two months after its new counsel substituted into the case. The court finds MM1 has established it diligently sought leave to amend.

Potter argues the Motion should be denied because it was filed after unwanted delay for the admitted purpose of mooted the pending MJOP. However, MM1 merely points out that the practical effect of the SAC will be to moot the MJOP. Doing so does not negate the legitimate reasons MM1 provided for the purpose of the Motion and its timing. Potter also contends the core facts on which the SAC rests were known or knowable long before new counsel appeared. Potter, however, ignores the many factual allegations in the proposed SAC that concern conduct occurring after the FAC was filed. (See, e.g., Loh Decl., Ex. A [SAC], ¶ 18.)

Even if MM1 unreasonably delayed seeking leave, Potter has not demonstrated he will be prejudiced by the amendment. Absent a showing of such prejudice, delay alone is not grounds for denial of a motion to amend. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048; *Higgins v. Del Faro* (1981) 123

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|    |                                           | <p>Cal.App.3d 558, 564.) Potter generally argues it will suffer prejudice due to increased burden of discovery, added costs of preparation, and disruption of the defense. However, Potter does not identify the additional discovery needed due to the amendment. As MM1 points out, no depositions have been taken. Further, discovery remains open, trial is six months away, and Potter has had the proposed SAC since 6/4/26 and ignored the proposed stipulation to file it. Potter has had ample time to respond to the SAC, conduct discovery, and prepare for trial.</p> <p>The court declines to consider the validity of the proposed SAC. Potter can test its legal sufficiency in the appropriate motion after the SAC is filed. (See <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 760 [“the better course of action would have been to allow [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings”].)</p> <p>Based on the policy favoring leave to amend, the motion is GRANTED.</p> <p>Plaintiff shall file and serve the SAC within five days.</p> <p>Potter’s request to condition granting leave to amend on any demurrer or motion for judgment on the pleadings directed to the SAC be set for hearing on shortened time, or given calendar priority, is DENIED without prejudice to Potter filing an ex parte application for such relief concurrently or after such demurrer or judgment on the pleadings is filed.</p> |
| 7. | <b>GOLDEN VS. JONES<br/>2026-01538926</b> | <p><b>MOTION TO SET ASIDE/VACATE DEFAULT</b></p> <p>Defendants James L. Jones’ Motion to Set Aside Default is DENIED.</p> <p><u>Plaintiffs’ Evidentiary Objections to the Declaration of James L. Jones</u></p> <p>The Court SUSTAINS Plaintiffs’ objections as to objection number 6 and OVERRULES the remaining objections.</p> <p><u>Defendant’s Evidentiary Objections to the Declarations Christopher D. Gordon and Lucas A. Urgoiti</u></p> <p>The Court declines to rule on Defendant’s evidentiary objections as unnecessary to the analysis.</p> <p><u>Defendant’s Compliance with California Rules of Court, Rule 3.1113, subdivision (d)</u></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |